Development Application & Modification Lodgement Requirements

northern beaches council

Council has developed this guide to assist applicants in preparing their Development Application for lodgement. The guide includes lodgement instructions, as well as the mandatory documentation Council requires. Documentation required will depend on the nature of the development proposal, the location of the site, and any site constraints. Applicants may contact Council's Development Advisory Service on 1300 434 434 should assistance be required in identifying this documentation.

Applicants should refer to Council's Planning Controls to ensure documents are prepared in accordance with relevant requirements.

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Important information for all applications

It is a legislative requirement that all applications **must** be lodged through the NSW Department of Planning and Environment's Planning Portal. For steps outlining how to lodge your Development Application, please refer to Council's 'Lodge your Application' web page.

Documentation

To allow Council to process your application in a timely and efficient manner, please ensure documents are lodged in accordance with the following:

1. Mandatory documentation is lodged as outlined on page 1.
2. A Master Set of plans, as outlined on pages 3-6, are to be uploaded as one file on the Planning Portal (Document Type 'Architectural Plans').
   * ***Note:*** *Landscape and stormwater plans are to be uploaded as separate files in the portal.*
3. Reports are uploaded separately.
4. Documents are to be titled in the below naming format examples:

- Owners Consent
- Cost Summary Report Form
- Report - Statement of Environmental Effects
- Report - Statement of Modification
- Report - Clause 4.6
- Report - Bushfire
- Report - BASIX Certificate
- Report - Geotechnical
- Report - Waste Management Plan
- Plans - Master Set
- Plans - Landscape
- Plans - Stormwater

Disclaimer – Documents on public exhibition

By lodging a Development Application you acknowledge and agree to the use of all relevant plans and reports lodged with the application for public exhibition purposes and note that they will be made available to the public on Council's Application Search.

Note: It is not the responsibility of Council to remove signatures or owner's details from documentation lodged, this is the responsibility of the applicant prior to lodgement of the application.

Owners consent

Where the applicant is not the owner, or where there are multiple owners, written land owners consent is required for all development applications. Refer to Council's Forms page for relevant Owners Consent Form to be completed.

Where a landowner is one of the following, the below additional supporting documentation must also be provided:

- **Company/organisation**
  Applicant must provide an ASIC Current Company Extract document. Where there is more than one company owner, council may request additional supporting documentation. Document must list office holders.
- **Land/new owners(s)**
  Applicant must provide a copy of the Notice of Sale or Settlement Letter. Strata Title/Owner's Corporation (if the property is a unit under strata title or a lot in a community title) Applicant must provide a letter on strata management letterhead, clearly stating the words 'Support for lodgement of Development Application'.
- **Joint wall/fence**
  When works affect a joint wall, consent of all affected property owners is required (e.g. semi-detached dwelling). The title document or a current rates notice of each property will provide this information.
- **Legal authority**
  If you are signing on the owner(s) behalf as the owner(s) legal representative, you must state the nature of your legal authority and attach documentary evidence (e.g. power of attorney, executor, trustee, company director, etc.)

Note: Council may request additional supporting information depending on the nature of the development proposal.

Integrated development

All required approvals, in accordance with Section 4.46 of the Environmental Planning and Assessment Act 1979, must be stipulated when lodging an application on the Planning Portal.

Council's Fees and Charges outline applicable Integrated Development fees.

Council will raise a request to the relevant agency through the Planning Portal for applications where integrated referrals are applicable. Further fees may be payable directly to the referral agency via the Planning Portal.

Modification application requirements

The following documents must be submitted for all modification applications:

- **Statement of modification**
  Describe in detail all the proposed modifications and discusses any impacts these changes have on the relevant planning controls and on adjoining or nearby properties. The statement of modification is to make clear if the proposed works have been undertaken in part or full, as council cannot determine a modification application retrospectively as established by ku-ring-gai council v buyozo pty ltd [2021] nswca 177.

Plans

If the amendments involve changes to the design, the application must include copies of approved plans from the original development consent, indicating all proposed modifications. The modifications must be clearly highlighted and should be in colour.

- **Reports**
  If the original development application is supported by reports (i.E. Bushfire, geotechnical, flood risk assessment, statement of heritage impact, etc) the reports must be updated so that they are relevant to the development as modified. Alternatively, a letter may be provided from the original author of the report/s stating that the recommendations of the original report, are still current for the proposed modification.
- **Basix Certificate**
  An amended basix certificate is required if the original application included one.

The following is required for any modification to a SEPP 65 development:

- **Design Verification Certificate - modifications**
  A statement by the qualified designer who designed, or directed the design of, the original development, stating that the modifications will still result in a development that is consistent with the design quality principles set out in Schedule 1 of the SEPP No 65 – Design Quality of Residential Apartment Development, and an assessment of the proposal against any provisions (relevant to the modifications) of the Apartment Design Guide.

Important information for all plans

All plans are to clearly highlight the proposed works. Buildings or parts of buildings to be demolished are to be indicated using a dotted line or are to be shown on a separate plan.

The following information must be included/shown on all plans:

- plans must be to scale (1:100 or 1:200) with the scale clearly identified on each plan,
- applicant(s) name(s),
- property address (block/house/shop/flat number),
- lot number, section number and Deposited Plan / Strata Plan number,
- measurements in metric,
- draftsman/architect name,
- plan/document reference details (date, plan/document name and number, plan version/revision etc.).

All plans submitted as part of your application (e.g. site plan, roof plan, landscape plan) must be consistent in detail.

For food premises, the plans must show details in accordance with the relevant Australian Standards (including AS 4674).

For skin penetration premises, the plans must show details in accordance with the Public Health Act.

Development in Frenchs Forest Precinct - additional requirements

All development applications within the Frenchs Forest Precinct must be accompanied by an assessment of the consistency of the proposed development with the Frenchs Forest 2041 Place Strategy.

A concept development application to a consent authority for development consent to carry out development on Site F must be accompanied by a study about traffic and transport that:

a. is endorsed by Transport for NSW, and

b. sets out the transport infrastructure and capacity that will service Site F.

Note: See Clause 35A of the EP&A Regs for further detail

Architectural Plans (Master Set) - to be uploaded as one document

Architectural plans are to be submitted as **one** document and titled **'Plans - Master Set'** (excluding Landscape and Stormwater).

Master Set should include the following plans (as applicable) which are outlined in further detail below:

- Site Plan
- Site Analysis Plan
- Demolition Plan
- Floor Plans
- Elevation and Section Plans
- Waste Management Site Plan
- Excavation and/or fill Plan
- Subdivision Plan
- Certified Shadow Diagrams
- Schedule of Colours and Materials
- Photo Montage
- Road Design Plan
- Advertising Structure / Sign Plan

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b. sets out the transport infrastructure and capacity that will service Site F.

Note: See Clause 35A of the EP&A Regs for further detail

Site Plan

A site plan must be submitted with all applications, and is to include (where relevant):

- boundary locations and all site measurements (length, width and area, both existing and proposed),
- dimensioned distances of the new and existing works in relation to site boundaries,
- any minimum setbacks/building lines (shown dotted/dashed) as prescribed by the relevant plan or policy,
- location of
  - » all buildings/structures on adjoining land, including levels and any openings or decks/balconies facing the site
  - » all existing and/or proposed impervious areas/hard surfaces, including dimensions of driveways, decks, paved areas etc
  - » any existing or proposed swimming pools, proposed fences and landscaping features, including retaining walls, paths etc
  - » vegetation and natural features, including canopy trees, rock outcrops etc.
  - » any existing and/or proposed rainwater tanks, including capacity
  - » existing and/or proposed car parking, pedestrian and vehicle access, indicating gradients
  - » existing and/or proposed stormwater infrastructure and/or easements (Council and private), both within the site
  - » and the adjacent road reserve,
  - » all existing and/or proposed electrical infrastructure, including easements, kiosk substations and power poles both within the site and the adjacent road reserve,
  - » any utility manholes, street trees, driveway crossovers and bus stops in the adjacent road reserve,
  - » any existing and/or proposed flue/chimney/exhaust and dimensioned distance from the nearest openings of
  - » adjoining buildings,
- any heritage and archaeological features,
- contours at 1m intervals,
- north point (true north),
- width of road reserve.

Site Analysis Plan

A context and site analysis plan must accompany all applications, demonstrating that consideration has been given to site constraints and the context of the immediate locality, including (but not limited to):

- views to and from the site,
- solar access and overshadowing,
- views and solar access enjoyed by adjacent properties,
- adjoining and nearby land uses,
- location of all existing and/or proposed electrical infrastructure, including easements, kiosk substations and power poles
- both within the site and the adjacent road reserve,
- bush fire mapped hazards, flood affectation, coastal hazard etc
- orientation, microclimate and noise sources,
- significant vegetation.

Demolition Plan

A demolition plan must be submitted with all applications involving demolition and is to clearly identify all structures to be demolished

Architectural Plans (Master Set) cont.

- Floor Plans
- A floor plan must be submitted with all applications involving internal works, and is to include (where relevant):
- boundary locations and all site measurements,
- dimensioned distances of the new works in relation to site boundaries,
- any minimum setbacks/building lines (shown dotted) as prescribed by the relevant plan or policy,
- location and levels of all buildings/structures on adjoining land (including any openings or decks/balconies facing the site),
- floor levels and steps in floor levels (RLs)(metres AHD),
- proposed room names, areas and dimensions,
- locations and size of windows and doors,
- wall structure type and thickness,
- location of plumbing fixtures,
- access arrangements and facilities for persons with a disability,
- existing floor plan, room names and use (if relevant),
- location of any solid fuel heater.

Elevations and Section Plans

Sections and elevations must be submitted with all applications that involve physical works and are to include (where relevant):

- proposed levels (RLs) (metres AHD) for all ridge lines, ceilings, floors and ground,
- existing ground levels, including street levels (metres AHD),
- outline of existing buildings/development on site (shown dotted),
- section plan drawn through the highest surveyed point of the dwelling with the maximum applicable building height plane from the existing ground level,
- the side boundary building envelope (on elevations),
- window size and location,
- any chimneys, flues, exhausts etc., including levels (RLs)(metres AHD) at their highest point,
- location of all buildings/structures on adjoining land,
- roof pitch and eave width,
- materials and finishes,
- room names/uses (sections only),
- where driveways or other alterations are proposed to Council's infrastructure, detailed sections of gradients and levels must be provided for assessment purposes. This may necessitate long sections of the driveway to the footpath or to the centre line of the road.
- detailed plans for swimming pools, spas, or excavation, structures or vessels that meet the definitions under Swimming Pools Act 1992 including site plan, sections and elevations (pool plans),
- proposed levels (RL's) (metres AHD) for all changes in level proposed with the application.

Certified shadow diagrams

Shadow diagrams must be submitted for new developments that will result in additional shadow impacts to demonstrate compliance with the requirements in the relevant DCP. Shadow diagrams must take into account the slope of the land.

Existing and proposed shadows are to be shown as cast on 21 June at 9am, 12noon and 3pm. The diagrams should include:

- certification of accuracy by a suitably qualified person such as an Architect,
- location of proposed development,
- position and relationship to adjoining buildings and land (showing street number and street address),
- details of existing and proposed shadows,
- diagrams must be based on a Survey plan prepared by a registered Surveyor and drawn to true north,
- additional shadow diagrams including hourly shadow diagrams or elevational shadow diagrams may be required,
- location of all the boundaries on adjoining land that is effected by any proposed overshadowing.

Note: Council may require this document to be prepared by an independent professional for larger developments.

Architectural Plans (Master Set) cont.

Waste Management Site Plan

The Waste Management Site Plan must show the locations of waste storage, demolition site access, sorting areas, skip bins required and other details for how waste on the site will be managed during the demolition and construction phases.

In addition, all relevant plans submitted with the application (e.g., floor plans, sections and site plans) must show details (for the purpose of on-going waste management) to identify location of waste storage areas (garbage and recycling), location of any proposed collection area, number of bins and hours of collection (if known).

Residential accommodation

In relation to dwelling houses, the site plan and floor plan layout of the proposed development must provide for the ongoing management of waste for occupants of the development as follows:

- location of a waste cupboard waste storage area within the dwelling capable of holding a single day's waste and allow
- source separation of non-recyclable and recyclable waste,
- location of external waste storage and recycling area capable of accommodating Council's standard garbage and recycling bins, located outside the dwelling with convenient access to the usual collection point.

Note: If a development is to include a mix of residential and commercial activities, separate collection arrangements must be provided.

In relation to all other residential accommodation involving more than 1 dwelling, the proposed development must provide for the ongoing management of waste for occupants of the development as follows:

- the location of individual, external waste storage and recycling area(s) relative to the usual collection point, or
- if a communal waste storage and recycling area(s) or garbage and recycling room(s) are proposed, design specifications must be included. This would include a floor plan, elevations and cross section drawings of the room and also the materials and finishes to be used, and design details of any garbage chute if applicable.

If a communal facility is proposed, the area(s) must:

- be able to accommodate all bins required,
- be accessible from all dwellings, and
- have prominent signage indicating correct use of bins.

The location and design of the waste storage area must complement the streetscape and must not impact on the amenity of adjoining properties (visual, noise, and odour).

Commercial and Industrial development

Commercial and Industrial building works require the following details to be provided on the floor/site plan:

- individual waste storage and recycling area(s) located externally and relative to the collection point, or
- if a communal waste storage and recycling area(s) or garbage and recycling room(s) are proposed, design specifications must be included. This would include a floor plan, elevations and cross section drawings of the room and also materials and finishes,
- design details of garbage chute system(s) and any volume reduction equipment.

If individual garbage and recycling storage areas are proposed, sufficient space must be provided to facilitate source separation of waste and must be compatible with the chosen waste collection service.

- If a communal waste storage and recycling area is proposed the following requirements also apply:
- each separately tenanted or separately occupied area within the building or complex must have easy access to collection
- containers able to accommodate the type and quantity of waste and recyclable material generated,
- be able to accommodate all bins required,
- have prominent signage indicating correct use of bins, and
- garbage and recycling facilities must be situated as to not impact on the amenity of adjoining premises (noise, odour or visual).

Note: Where hazardous or unique waste materials are to be generated special arrangements will be required. Advice should be sought from the Environment Protection Authority or Council on the specific management arrangements for these materials.

Excavation and/or Fill Plan

A plan showing the extent and volume of excavation and / or fill must be submitted for all developments involving excavation and fill, except where the excavation is only for the provisions of foundations.

Architectural Plans (Master Set) cont.

Subdivision Plan

Applications involving the subdivision of land must be accompanied by a draft plan of subdivision, prepared by a suitably qualified registered surveyor, demonstrating::

- proposed lot sizes,
- dimensions of all boundaries,
- vehicular and pedestrian access to all lots,
- any land to be dedicated to Council,
- any existing or proposed easements, covenants or right of ways,
- location of essential infrastructure servicing all lots.

For undersized allotments and sites that are physically constrained (i.e. small site or small buildable area), indicative building footprints should also be nominated. For these sites it is recommended that you confirm the requirements through a pre lodgement meeting.

Applications for Community title subdivision shall also be supported by a draft Community /Neighbourhood Management Statement.

Applications involving Strata subdivision shall be accompanied by a draft plan of Strata subdivision demonstrating:

- proposed lot sizes,
- common property,
- any easements or restrictions.

Additional requirements for subdivision in the Warriewood Valley Release Area are prescribed by Control C6.9 of Pittwater 21 DCP.

Schedule of colours and materials

All DAs involving external works must include a plan or document showing the proposed materials and colours/finishes of the façade.

Photomontage

A photomontage must be submitted for any development where the cost of works exceeds $5 million or as requested by Council.

Photomontages are to show the key contextual streetscape, and neighbourhood settings of the proposed development and other relevant images, such as impacts on critical/sensitive views from both the public (including waterways) and private domains. The montages are to be generated from a Survey and are to be accurate and detailed 3-dimensional computer models of the proposed development.

Road Design Plan

For applications involving the construction of new roads or upgrades to existing roads, detailed civil engineering plans, long sections and cross sections are required for the full extent of the works.

If the proposal is in Warriewood Valley Land Release Area, see the Warriewood Valley Roads Masterplan (2018) and Warriewood Valley Landscape Masterplan and Design Guidelines (Public Domain) for additional requirements.

Advertising Structure/Sign Plan

Advertising/signage details must be submitted for all applications that involve advertising, business or building identification signage.

The plan must detail:

- the advertising structure / sign, materials to be used and how it will be fixed to the building,
- dimensions (including width, height and depth), colours, lettering and overall design,
- the proposed location shown on the site plan (show distances to boundaries),
- any existing signage on the property, including dimensions, and details if removal is proposed,
- illuminated signage including type (e.g. flood light, internally illuminated), hours of illumination, amount and extent of light spill (light spill diagram may be requested),
- how SEPP (Industry and Employment) 2021 criteria and DCP requirements have been addressed.

Boundary Identification Survey

A Boundary Identification Survey (less than 24 months old) is required to be submitted with all applications, except:

- Where a change of use is proposed with no external works
- Where the application relates to internal works only
- Where the application relates to replacement of signage mounted to an existing structure

The Boundary Identification Survey must include the following:

- The survey must be prepared and signed by a registered surveyor and show their name and Registration Number.
- Any offsets should be annotated clearly, showing the position of fences and walls in relation to boundaries.
- Boundaries are not to be taken from title dimensions. Survey notes are to stipulate that 'Boundary identification (or definition) has been undertaken'
- True north point, or relationship to true north
- Scale, generally 1:100 or 1:200
- Position of all existing structures, with floor levels & ridge height of main building
- Position of existing structures on adjoining land within 3 metres of the boundary, including description, street number, floor level, ridge height, and window levels & locations in the walls closest to the side boundaries
- Levels - spot levels & existing contours related to Australian Height Datum (AHD) with bench mark details & origin of levels shown
- Trees- exact position, trunk diameter (if greater than 200mm), height, spread, & species (if known) both on the subject site, and on adjoining land within 5 metres of the site boundaries
- All visible services within the site & council footway area, including stormwater pits & invert levels, hydrants, sewer manholes, Telstra pits etc.
- Concrete paths, vehicle crossings, kerb position with top of kerb levels, and kerb outlets
- Location & type of all existing easements and rights of way including party walls and common walls
- Current documentary evidence (Section 88B instrument or dealings) relating to any easements or rights of carriageway which are to be relied upon.

Landscape Plans

A Landscape Plan, prepared by a suitably qualified professional, must be submitted with all development applications, except where there are no external works. A Landscape Plan may not be required for applications of a minor nature or where it is considered that there is a minor impact to the streetscape and to adjoining properties. This will be at the discretion of Council staff.

The Landscape Plan must be consistent with the architectural, stormwater and other relevant plans submitted with the application, and must detail:

- calculations of the landscape area on the site as per the definition in the relevant DCP (this may be shown on a separate plan for clarity),
- proposed surface treatments and materials, including but not limited to structures, features, walling, fences, pavements, gardens, lawns, ground stabilisation, drainage irrigation, etc,
- existing and proposed ground levels,
- outline of proposed buildings, driveways and structures, including swimming pools, pavements, walls and fences, all consistent and co-ordinated with building and services plans,
- location, height and materiality of proposed retaining walls and fences,
- existing street trees or trees on neighbouring properties within 5 metres, that may be impacted by the proposed development,
- existing trees and other vegetation to be retained or removed. All trees are to be located, identified and numbered, and shall coincide with the arborist's report. Protection measures for retained vegetation shall be included in the arborist's report,
- proposed planting scheme including species selection, location, quantities, mature heights and pot sizes,
- rock outcrops and other landscape features,
- location of any underground services or basements,
- soil depth of planter boxes on-slab,
- any irrigation systems,
- BASIX landscape commitments where relevant are to be indicated by clearly indicating the area on the landscape plan.

For all applications in Warriewood Valley, a site plan is to show the amount of total landscaped area (distinguishing the landscaped and deep soil areas) and the total area that will be impervious.

Larger scale developments such as Mixed-Use Developments, Residential Apartments, Multi-dwelling Housing, Retirement Villages, Aged Care Facilities, and Industrial Development shall require additional information as follows:

- a deep soil plan to demonstrate the soil volumes can accommodate the proposed planting.

Stormwater Management Plan

A Stormwater Management Plan must be submitted for all applications proposing new buildings, or alterations and additions of existing buildings.

The plan must detail:

- the direction of water flows on all surfaces,
- any existing or proposed water collections points/methods,
- any existing or proposed water reuse systems,
- any existing or proposed connections to Council's stormwater infrastructure,
- the size, location and design of any required on-site detention tank or basin,
- the size, location and design of any required rain garden,
- the size, location and design of any required rainwater tank,
- existing and proposed impervious area and percentage change in existing and proposed impervious area,
- consistency with any relevant BASIX recommendations.

Refer to the Northern Beaches Water Management for Development Policy for further details on Stormwater Management requirements and specifications.

Applications for proposed alterations and additions to existing dwelling houses shall provide the following:

- A Concept Stormwater Plan AND Certification from an appropriately qualified and practicing Civil or Hydraulic Engineer confirming that the proposed stormwater design is consistent with Council's Water Management for Development Policy. Concept plans must include dimensions and levels of the area proposed for infrastructure and all site features including structures and vegetation.

For development in the Warriewood Valley Land Release Area, a Water Management Report is to be prepared in accordance with the Warriewood Valley Water Management Specifications (see clause C6.1 of Pittwater 21 DCP); or in the case of newly created individual allotments see Control D16.4 of Pittwater 21 DCP for additional water management requirements.

Stormwater Drainage Assets Plan

Northern Beaches Council has an online Public Stormwater Drainage map that can be used to determine if the subject property is burdened by a public stormwater drainage system.

1. The Public Stormwater Drainage map information is provided under the following conditions:
   a. The information shown on the stormwater drainage map is indicative only.
   b. It outlines the approximate locations of stormwater infrastructure according to Council's records.
   c. There may be drainage assets in place at some locations that Council does not have records of, or infrastructure that has been upgraded, replaced, or removed since this information was recorded.

The exact location of the infrastructure and/or easements should be confirmed using a qualified service locating provider and registered surveyor.

2. The Public Stormwater Drainage map can be viewed by:
   a. Click Stormwater Drainage Map
   b. Select the 'No Overlay Map' tab
   c. Select 'Stormwater' from the drop-down menu
   d. Search the location by address to view nearby Stormwater Infrastructure

Developments burdened by public drainage system

Should the subject property be burdened by a public stormwater drainage system or easement, the applicant is required to demonstrate compliance with the following:

- **Water Management for Development Policy** – Council's Water Management for Development Policy includes water management technical specifications.
  - Section 6.0 – Stormwater Drainage System provides information for land that is burdened by or is adjacent to a Council stormwater drainage system and/or easements.
- **Northern Beaches Council – Development Control Plans**

To demonstrate compliance with the relevant policies and DCP, the following details must be submitted with the application:

- Accurately locate, confirm dimensions including depth and plot to scale Council's stormwater pipelines and associated infrastructure on the DA site plans that outline the proposal. This should be carried out by a service locating contractor and registered surveyor. Evidence of methodology used for locating stormwater system should be provided.
- All structures are to be located clear of any Council pipeline or easement.
- Footings of any structure adjacent to an easement or pipeline are to be designed in accordance with the above-mentioned policies and DCP.
- Structural details prepared by a suitably qualified Civil Engineer demonstrating compliance with Council's policies and DCP are to be submitted.

Developments for the reconstruction/relocation of public drainage system

Council may consider a proposal to reconstruct or relocate a public drainage system where it can be demonstrated that:

- The diversion is wholly contained within the subject land or Council Road reserve
- That the flows are not diverted to an adjoining/alternative catchment
- The hydraulic design requirements as outlined in Council's Water Management for Development policy and Engineering Design Specification - AUSPEC can be achieved.

Statement of Environmental Effects

A Statement of Environmental Effects must document:

- describe the site in detail (current use, aspect, slope, vegetation etc.),
- describe the proposed development in detail,
- the environmental impacts of the development,
- how the environmental impacts of the development have been identified,
- the steps to be taken to protect the environment or to lessen the expected harm to the environment,
- any matters required to be indicated by any guidelines issued by the Planning Secretary,
- respond to all relevant provisions of any applicable environmental planning instruments (SEPPs), development control plans (DCP's) and Council policies,
- development compliance with building heights, building height planes, setbacks and building envelope controls (if applicable) marked on plans, sections and elevations,
- include a compliance table showing the performance of the development against the relevant numerical standards and controls,
- provide justification for any areas of non-compliance with relevant objectives, standards or controls,
- if the proposed development is within an area in which the built form is changing, statements of the existing and likely future contexts.

Additional details may be required for certain development, including:

- hours of operation, trading hours and/or delivery times,
- staff numbers,
- plant and machinery to be installed, including hours of plant operation,
- type, size and quantity of goods to be made, stored or transported.

For development referred to in State Environmental Planning Policy (Housing) 2021, clause 45(1) - Evidence or information demonstrating whether the development is likely to result in the loss of low-rental dwellings on the land to which the application relates during the relevant period, within the meaning of State Environmental Planning Policy (Housing) 2021, Chapter 2, Part 3.

If the application seeks to vary a development standard within an Environmental Planning Instrument, a separate document is required as outlined under Clause 4.6 - Variation to a Development Standard below.

Estimated Development Cost (EDC) Report /Quantity Surveyors Report

This form is required to be completed consistent with the points below and submitted with all Development Applications, except where there is no associated works:

- Development with an estimated cost up to $100,0000 can be estimated by the Applicant. Note – a building work quote may assist your estimate accuracy and must be consistent with industry standard indexation.
- Development with an estimated cost between $100,001 and $3,000,000 requires this form to be completed by a Building Industry Professional (Architect/ Designer, Registered Builder).
- Development with an estimated cost over $3,000,001 requires this form or a Quantity Surveyors report to be prepared by a Quantity Surveyor (AIQS / RICS professional).

To access the EDC form, go to Council's Forms page and refer to Form Number 2080.

Waste Management Plan - Construction, demolition and/or ongoing

A Waste Management Plan must be submitted with all developments involving demolition, earthworks or construction.

The Waste Management Plan must be filled out in accordance with the Northern Beaches Waste Management Guidelines and must detail the reuse, recycling and disposal methods for all demolition and construction waste on site.

PLEP 2014
In addition to the above, the Waste Management Plan must be filled out in accordance with Section B8 of the Pittwater 21 DCP.

WLEP 2011
In addition to the above, the Waste Management Plan must be filled out in accordance with Parts C8 & C9 of the Warringah DCP 2011.

MLEP 2013
In addition to the above, the Waste Management Plan must be filled out in accordance with Section 3.8 of the Manly DCP 2013.

Note: *During demolition and construction, residues from operations such as masonry-cutting, washing tools, and concreting must be:*

- *contained on the site and treated using sedimentation settling tanks or flocculation and disposed of in accordance with the Waste Management Plan at paragraph 2.1.12*
- *stored well clear of any poorly drained or flood prone areas, stream banks, and channel or stormwater drainage area in a designated area and under cover where possible, and*
- *provided with containment bunds, constructed around the storage areas which allow salvaging of spilt materials.*

Arboricultural Impact Assessment Report

An Arboricultural Impact Assessment Report, prepared by a qualified AQF5 (or higher) arborist, must be submitted when works are proposed within 5.0m of a tree irrespective of property boundaries. No Arborist Report is required for trees and species within the development site that can be removed without approval under the relevant DCP.

The Arboricultural Impact Assessment report must include:

- who commissioned the report and why was the report commissioned,
- the address of the site containing the trees,
- a plan of the site showing the exact location of the trees and the trees numbered to correspond with the text,
- the methods or techniques used in the inspections,
- the scientific name, common name, height, canopy spread, trunk diameter at breast height, SULE, landscape significance, and form of each tree,
- discussion of the data collected, which may include information regarding wounds, cavities, cracks, splits, forking, root zone or diseases,
- supporting evidence such a photographs,
- a discussion of all options relating to tree retention or removal, including construction techniques to minimise impacts upon root systems,
- justification for tree removal,
- if required, a tree construction impact statement and recommendations for construction methodology,
- may include root mapping,
- demonstrate compliance with the relevant Australian Standards.

The arborist is to review all architectural and engineering plans and is to be aware of any and all earthworks proposed on site.

Aboriginal Heritage Assessment Report

An Aboriginal Heritage Assessment Report, prepared in accordance with the NSW Office of Environment and Heritage's (OEH) Due Diligence Code of Practice for the Protection of Aboriginal Objects in NSW, must be submitted for any development application on land:

- on which an Aboriginal heritage item is located,
- that is to be affected by any proposed works.

A report may be required for any development application on land:

- that is in the vicinity of an Aboriginal heritage site or conservation area,
- that is in the proposed impact area.

The report must include:

- an assessment of the boundary and extent of the Aboriginal site,
- an assessment of the heritage significance of the site,
- a discussion of the impacts of the proposed works on the significance of the item, and
- details of the mitigation measures.

The Aboriginal Heritage Assessment Report is to demonstrate that all possible means of mitigating any negative impact on the site have been addressed and that the proposed works will not harm or damage the site, unless an Aboriginal Heritage Impact Permit has been issued from the NSW OEH authorising such work.

Council may require further documentation that provides guidelines for the on-going management and conservation of Aboriginal heritage sites and conservation areas.

Access Report

Access Reports, prepared by accredited access professionals, must be submitted to demonstrate compliance with relevant access standards for applications involving Class 2-9 buildings, and are to address access provisions of the BCA, Disability (Access to Premises - Buildings) Standards 2010 and relevant Australian Standards.

The Access Reports are to (where appropriate):

- demonstrate equitable access to the main entrance of the building and within all areas of the building required to be accessible to the occupants of the building and the general public,
- demonstrate parking spaces, and access thereto, consistent with the relevant provisions of AS2890.6 or AS4299 (as applicable),
- demonstrate adaptable housing units (including plans in pre and post adaptable stage) in accordance with AS4299.
- demonstrate consistency with the relevant minimum requirements of the Liveable Housing Design Guidelines.

Acid Sulfate Soil Report

If the property is affected by acid sulfate soils (see the provisions of Clause 6.1 in MLEP 2013 and WLEP 2011 or Clause 7.1 in PLEP 2014 and the LEP Acid Sulfate Soils Map for site specific requirements) a preliminary assessment prepared in accordance with the Acid Sulfate Soils Manual (ASSMAC, 1998) must be submitted.

Acoustic Report

An Acoustic Report, prepared by a suitably qualified professional, must be submitted for:

- licensed premises
- childcare centres,
- non-residential mechanical ventilation,
- industrial uses bordering residential zones,
- indoor recreational facilities (e.g. gyms)
- residential development with a frontage to a road with an annual average daily traffic volume of more than 20,000 vehicles (based on the traffic volume data published on the website of TfNSW).

Acoustic Reports may be required for other uses at Council's discretion. Please contact Council's Environmental Health Team if unsure.

Aquatic Ecology Assessment

An Aquatic Ecology Assessment, prepared by a suitably qualified aquatic ecologist, must be submitted for all development below mean high water mark to satisfy Part 7 of the Fisheries Management Act 1994;

PLEP 2014

An Aquatic Ecology Assessment is also required for land adjacent to estuarine wetlands, including saltmarsh, seagrass beds, mangroves and estuarine habitat as required by the Pittwater 21 DCP.

Relevant clauses of the SEPP (Resilience and Hazards) 2021 must be addressed in a report. Clauses that may apply include Coastal vulnerability area, Coastal environment area and Coastal use area.

Backpackers' Accommodation/Boarding Houses Management Plan

MLEP 2013

All applications for new and existing Backpackers' Accommodation and Boarding Houses are required to prepare a Management Plan. Any pre-existing Management Plan is to be reviewed and resubmitted with any subsequent application.

The Management Plan must include the following:

- Details of an onsite manager who is to be present at all times and have overall responsibility to oversee management commitments. The Onsite Manager must be over 18 years old and guests must not be used as temporary managers.
- Details of the management commitments, required to:
  - » ensure the facility is run in a manner which causes no disturbance to neighbouring properties,
  - » ensure guest numbers do not exceed those permitted by the development consent,
  - » maintain the premises in a clean, safe and tidy manner and provisions of industrial waste services including professional cleaning and pest/vermin control arrangements including at least weekly servicing of communal bathroom and kitchen facilities,
  - » maintain a register of guests (including information on length of stay, address etc. in relation to backpackers. In relation to Boarding Houses there is a maximum number of 2 adults in each boarding house lodging room, maintain the premises in a "fire safe" manner which includes ensuring that:
    - * doorways and other openings remain 'fire stopped' to maintain fire separation and compartmentation, and
    - * emergency access provisions remain adequate and are properly maintained; and cleared; and all fire services, equipment and warning systems remain in good working order.
- Details on all doors to sleeping rooms indicating a room identification number and the maximum number of persons permitted to be accommodated in the room,
- Details of the display of a room schedule prominently located on the premises,
- Statement that prescribe and enforce house rules, which are to be displayed in prominent; locations around the facilities, addressing:
  - » guest behaviour, visitors, activities and noise (including loud music/TV, parties and the use of outdoor areas at after 10pm,)
  - » the responsible consumption of alcohol and a zero tolerance policy on illegal drugs on the premises,
  - » fire evacuation procedures,
  - » visitor policy, and
  - » after hours access.
- Details of the location and wording of the public notice confirming it is sited in a location that it is readable from a public footpath and clearly identifies a contact name and number for the Site Manager and the owner or lessee who may be contacted regarding complaints or comments about the facility.

A performance report is to be lodged annually with Council detailing the years' management performance, including records of any complaints received and provision of an 'incidents register' (e.g., complaints regarding offensive noise, anti-social behaviour, accidents etc.) to be considered prior to renewing any lease.

BASIX Certificate

A BASIX certificate (issued no earlier than 3 months before the day on which the development application is lodged) must be submitted for all "BASIX Development" (See Dictionary under the Environmental Planning and Assessment Regulation 2021). For more information, phone the BASIX Help Line on 1300 650 908.

Biodiversity Assessment

A Flora and Fauna Assessment (FFA) or Biodiversity Development Assessment Report (BDAR) may be required for developments which involve the clearing or modification of native vegetation/bushland and other fauna habitats*. This includes potential impacts associated with any required bush fire hazard Asset Protection Zones (APZs). In some cases, a development may also require preparation of a Biodiversity Management Plan.

Council has developed a set of guidelines to assist applicants in determining any applicable biodiversity assessment requirements for their proposed development.

To identify the reporting requirements relevant to your proposal, refer to Council's Environmental and Community Protections webpage to review the guidelines under Biodiversity Assessments.

Compliance with applicable biodiversity-related controls should be addressed in the Statement of Environmental Effects regardless of whether formal biodiversity assessment is required.

** Fauna habitats may include native vegetation or bushland, native trees (especially those with tree hollows), designated wildlife corridors, rock outcrops, waterways, drainage lines, and human-made structures which may be used by microbats. Some residential areas of Manly also contain habitat for the endangered populations of Little Penguins and Long-nosed Bandicoots.*

Bushfire Report

A Bushfire Hazard Assessment Report must be submitted with all applications on bushfire prone land.

The Bushfire Hazard Assessment Report must:

- be prepared by a consultant qualified in bushfire risk assessment, as recognised by the NSW Rural Fire Service,
- demonstrate that the development conforms to the relevant specifications and requirements of Planning for Bush Fire Protection 2006,
- nominate the BAL rating for the development,
- identify whether the proposal relies upon an alternate solution,
- identify whether the application should be referred to the NSW RFS.

The Bushfire Report must be accompanied by a Bushfire Risk Assessment Certificate completed by a person who is recognised by the NSW Rural Fire Service as a qualified consultant in bush fire risk assessment and in accordance with Section 4.14 of the Environmental Planning and Assessment Act 1979.

Note: If the application requires referral to the NSW RFS, the report must identify the relevant specification and requirement of Planning for Bush Fire Protection that the proposed development does not conform to, per the following list:

- Asset Protection Zones (APZ)
- Access arrangements
- Emergency management arrangements
- Building construction, siting and design
- Water supply and utilities
- Landscaping

The report must also identify, in a short sentence, how the proposed development does not confirm to the specifications and requirements of Planning of Bushfire Protection.

Building Code of Australia (BCA) Report

A BCA Report, authored by an appropriately qualified registered surveyor, must be submitted for all commercial/industrial/mixed use or large scale residential development (all Class 2-9 buildings), demonstrating the building is capable of compliance with all relevant sections of the Building Code of Australia.

For applications involving alterations and additions to, or the change of use of existing Class 2-9 buildings, and as required under Clauses 62, 63 & 64 of the Environmental Planning and Assessment Regulation 2021, a report authored by an appropriately qualified registered surveyor, is to be provided with the application that reviews both the existing buildings' compliance regarding Structural and Fire Safety capability, and also that required for the proposed development.

Where not up to current standard/s, the report is to detail what measures are proposed to enable the building to be brought into compliance with the BCA or a level of compliance suitable for the proposed use.

Clause 4.6 - Variation to a Development Standard

This document (to be lodged separate to the Statement of Environmental Effects) must be submitted for all applications where a development standard, within an Environmental Planning Instrument, is proposed to be varied (this document is not required to vary a control in any development control plan).

The request must be a separate document identifying the development standard to be varied and the grounds for the request, pursuant to clause 4.6 of the Local Environment Plan.

Coastal Risk Management Report/Coastal Assessment Report

PLEP 2014

A Coastal Risk Management Report must be prepared to meet the objectives and requirements of clauses 5.7, 7.5 and 7.8 of Pittwater LEP 2014 and B3.3, B3.4, B3.12 of Pittwater 21 DCP. A Coastal Risk Management Report must be prepared and submitted by a qualified coastal engineer in accordance with the provisions of Appendix 6 – Coastline Risk Management Policy for Development in Pittwater and the relevant DCP when development is carried out on land identified on the Pittwater Coastal Risk Planning Map.

Declaration and certification forms made by a Coastal Engineer and by Structural Engineer or Civil Engineer are to be submitted in support of Coastal Risk Management Reports. The relevant provisions and controls of the Coastal Management Act 2016, SEPP (Resilience and Hazards) 2021 and SEPP (Biodiversity and Conservation) 2021 must also be addressed in the Statement of Environmental Effects.

Note: *When development is carried out on land identified on the Pittwater Coastal Risk Planning Map, a Geotechnical Risk Management Report (as an addendum to the Geotechnical Assessment Report), prepared by a qualified coastal engineer, must also be submitted. Refer to the Geotechnical Report section in this document.*

WLEP 2011

A Coastal Assessment Report must be prepared when development is being carried out on a property that is located in the Coastal Zone. A Coastal Assessment must be prepared that demonstrates compliance of the proposal with the Coastal Management Act 2016, SEPP (Resilience and Hazards) 2021 as well as clauses 5.7 and 6.5 of WLEP and clause E9 Warringah DCP.

MLEP 2013

A Coastal Assessment Report must be prepared in accordance with clauses *5.7, 6.8, 6.9 and 6.10 of the Manly LEP 2013, clause 5.4.1 of the Manly DCP 2013 and Sydney Harbour Foreshores Regional Environment Plan and Waterways Area DCP 2005. Relevant clauses of the SEPP (Resilience and Hazards) 2021 must be addressed in the report.*

Construction Traffic Management Plan

A Construction Traffic Management Plan must be prepared for constrained sites where access is difficult or for large projects that generate large volumes of construction traffic.

The plan is to include the impacts the proposal will have on the local road network. The plan must provide a description of the construction works, the traffic impacts on the local area and how these impacts will be addressed.

Construction Methodology Plan

A Construction Methodology Plan must be submitted for all sites without vehicle access or if the site is heavily constrained.

The plan must outline the method of construction, take into account any construction constraints, risks, and opportunities. Methodology is to include the temporary and permanent works and services required to complete construction works.

Contaminated Land Report

Contamination is a concentration of any substance that may present a risk to human health or the environment.

If yes to any of the following, a Phase 1 report prepared by a suitably qualified professional must be submitted:

- Has the site ever been used for any activity which may have resulted in the contamination of the site, or land near the site? Yes/No
- Has the site or land near to a site been used for any of the activities listed below at any time? Yes/No
- Has the site or land near the site has ever been remediated or investigated for contamination? Yes/No
- Are you aware of any contamination of the site, or land near the site, no matter when and no matter who caused that contamination? Yes/No

Subject to the findings of the Phase 1 report, a Phase 2 Report may be required. The Phase 2 Report may require a Remediation Plan prepared in accordance SEPP *(Resilience and Hazards) 2021 and the Contaminated Land Guidelines within Schedule 6 Clause 3 of the Environmental Planning and Assessment Act 1979.*

Existing or previous activities on the site:

- Acid/alkali plant and formulation
- Agricultural/horticultural activities
- Airports Asbestos production and disposal
- Boatyards
- Chemical manufacture and formulation
- Council works depot
- Defence works
- Drum re-conditioning works
- Dry cleaning establishments
- Electrical manufacturing (transformers)
- Electroplating and heat treatment premises
- Engine works
- Explosives industry
- Funeral Parlours
- Gas works Iron and steel works
- Landfill sites
- Metal treatment
- Mining and extractive industries
- Oil production and storage
- Paint formulation and manufacture
- Panel beating
- Pesticide manufacture and formulation
- Power stations
- Railway yards
- Scrap yards
- Service stations
- Sheep and cattle dips
- Smelting and refining
- Spray painting substations (electrical)
- Tanning and associated trades
- Waste storage and treatment
- Water board plant or depot
- Wood preservation

Electronic Model

An electronic model must be submitted for all developments exceeding $10 million (other than Subdivision).

Energy Performance Report

MLEP 2013

An Energy Performance Report is to be submitted for commercial and industrial type buildings with a ground floor area of greater than 500sqm.

The report is to demonstrate that the buildings or tenancies meet assessed energy targets, and clearly illustrate compliance with the planning provisions for Energy Efficiency/Conservation in accordance with clause 3.5.6 of the Manly DCP 2013.

The report must be prepared by an Energy Auditor qualified in energy efficient building design and listed on the Commonwealth Government's Register of Greenhouse and Energy Auditors. Energy Performance Reports from other professionals may be accepted if their qualifications and experience in assessing the energy efficiency of a DA is appropriately demonstrated to Councils' satisfaction.

Refer to www.cleanenergyregulator.gov.au for further information.

Environmental Impact Statement (Designated Development)

An application for a designated development as listed within Schedule 3 of the *Environmental Planning and Assessment Regulation 2021, Section 2.7 of the State Environmental Planning Policy (Resilience and Hazards) 2021*, or any other environmental planning instrument, is required to provide an environmental impact statement informed by the Secretary's environmental assessment requirements (SEARs), and prepared in accordance with Part 8 Division 5 of the Environmental Planning and Assessment Regulation 2021.

Estuarine Risk Management Report

PLEP 2014

An Estuarine Risk Management Report must be prepared to meet the objectives and requirements of clause 7.8 Pittwater LEP 2014 and B3.7, B3.8, B3.9, B3.10, B3.12 and B4.19 as well as D15.12, D15.15, D15.16, D15.17, D15.18, D15.19 and D15.20 of Pittwater 21 DCP.

An Estuarine Risk Management Report must be prepared and submitted by a qualified coastal engineer in accordance with the provisions of Appendix 7 – Estuarine Risk Management Policy for Development in Pittwater and the relevant development control when development is carried out on land identified on the Estuarine Inundation Hazard Map.

A Marine Habitat Survey/Aquatic Ecology report is required for all works below the Mean High Water mark. An analysis of the proposed development demonstrating that it has been designed to minimise any impact on Estuarine Habitat must be included in the Statement of Environmental Effects.

Declaration and certification forms made by a Coastal Engineer and by a Structural Engineer or Civil Engineer are to be submitted in support of Estuarine Risk Management Reports. The relevant provisions and controls of the Coastal Management Act 2016, SEPP (Resilience and Hazards) 2021 and SEPP (Biodiversity and Conservation) 2021 must also be addressed in the Statement of Environmental Effects.

Fire Safety Measures Schedule

A Fire Safety Measures Schedule is required for applications involving any development related to Class 2-9 buildings. The Fire Safety Measures Schedule shall list all existing fire safety provisions that apply to the current development, those that are to apply to the resultant development, and any upgrade works required, as prescribed by clauses 62 and 64 of the Environmental Planning and Assessment Regulation 2021.

Flood Risk Assessment Report

A Flood Impact Risk Assessment (FIRA) Report, prepared by a suitably qualified engineer or consultant, must be submitted for all development on land classified as medium or high flood risk precincts and all vulnerable development in low flood risk precincts.

There are some circumstances where a formal FIRA Report may not be required, eg:

- If all proposed works are located outside the relevant Flood Risk Precinct extent,
- First floor addition only, where the existing ground floor level is above the FPL,
- Internal works only, where habitable floor areas below the FPL are not being increased.

Refer to Council's Guidelines for Development on Flood Prone Land webpage for further details. This webpage also has a link to Council's Flood Hazard Map to find out if your site is flood affected, and a link to apply for a Flood Information Report which will provide flood levels including the FPL.

Geotechnical Report

PLEP 2014

For development on land classified as "H1" or "H2":

- A Geotechnical Report, prepared by a Geotechnical Engineer in accordance with the Geotechnical Risk Management Policy for Pittwater - 2009, must be submitted for development on land classified as "H1" or "H2" on the Geotechnical Hazard Map of PLEP 2014. The report must be accompanied by Form 1 and Form 1(a) from the Policy.
- In the case of minor development as defined under the Geotechnical Risk Management Policy for Pittwater - 2009, a Geotechnical Engineer may determine that a detailed Geotechnical Report is not required. This must be justified as a clear professional opinion with the supporting basis on which the opinion was formed and must be certified on Form 1.

For development on land classified as "H3"

- A Geotechnical Report, prepared by a Geotechnical Engineer in accordance with the Geotechnical Risk Management Policy for Pittwater – 2009, may be required for development on land classified as "H3" on the Geotechnical Hazard Map of PLEP 2014, if the development meets the criteria under Section 3.2(b)(iv) of the Geotechnical Risk Management Policy for Pittwater – 2009. The report must be accompanied by Form 1 and Form 1(a) from the Policy.

For development carried out on land identified on the Pittwater Coastal Risk Planning Map:

- A Geotechnical Risk Management Report (as an addendum to the Geotechnical Assessment Report) must be prepared and submitted by a qualified coastal engineer in accordance with the provisions of Appendix 5 – Geotechnical Risk Management Policy for Pittwater – 2009 when development is carried out on land identified on the Pittwater Coastal Risk Planning Map.

WLEP 2011

For development on land within Areas "B" and "D":

- A preliminary assessment of site conditions, prepared by a suitably qualified, practicing and experienced geotechnical engineer with corporate membership of the Institute of Engineers Australia, must be submitted in accordance with the requirements (and checklist) contained within Clause E10 of Warringah DCP 2011 and the Warringah LEP 2011 to determine if the preparation of a geotechnical report is required.

For development on land within Areas "C" and "E" and as determined necessary by a preliminary assessment of lands within Area "B" and "D":

- A geotechnical report, prepared by a suitably qualified, practicing and experienced geotechnical engineer with corporate membership of the Institute of Engineers Australia, must be submitted in accordance with the guidelines published by the Australian Geomechanics Society and in accordance with the requirements contained within Clause E10 of Warringah DCP 2011 and the Warringah LEP 2011.

MLEP 2013

Applicants must address the Checklist for Preliminary Assessment of Site Conditions at Schedule 11 of Manly DCP 2013 for all development applications to determine whether a Geotechnical Report is required.

Note: Applicants must consider which geotechnical area their property falls under in accordance with Potential Geotechnical Landslip Hazard Areas map at Schedule 1 - Map C of Manly DCP 2013.

Refer to clause 4.1.8 of Manly DCP 2013 for further considerations required for each Geotechnical area.

A Geotechnical Report, prepared by a suitably qualified, practicing and experienced geotechnical engineer, must be submitted where the proposed development involves:

- any land identified on the LEP Landslide Risk Map. In this regard a DA for development on land identified on the LEP Landslide Risk Map must consider certain matters under LEP clause 6.8,
- any excavation greater than 1m below natural ground level for a basement or basement car parking area,
- building works (load bearing) on land contained in geotechnical area 'G1' in the Potential Geotechnical Landslip Hazard Map, or
- building works (load bearing) on other land not contained in geotechnical area 'G1', i.e. areas 'G2', 'G3' and 'G4' where the applicant's Checklist for Preliminary Assessment of Site Conditions determines the need for a Geotechnical Report or is otherwise required by Council.

The report must stipulate site specific requirements to ensure that the site is:

- geotechnically stable,
- suitable for the proposed development,
- both property and life will be protected,
- recommendations to ensure that the existing rock formations and substrate on the site are capable of withstanding:
  - » the proposed loads to be imposed,
  - » the extent of the proposed excavation, including any recommendations for shoring works that may be required to ensure the stability of the excavation,
  - » protection of adjoining properties,
  - » the provision of appropriate subsoil drainage to prevent impact on the existing subsurface flow conditions.
- details demonstrating the development will conform to relevant Australian Standards and best Engineering Practice.

Note: *A structural report may also be required for further consideration in a DA for development of land which has been identified as being at risk of landslip or subsidence.*

Additional reports and documentation

Landscape Design Statement

A Landscape Design Statement may be required to demonstrate the impact of the proposal on streetscape amenity, how the landscape design integrates with the existing streetscape, the impact of the proposal on the neighbouring properties, and how the landscape design considers and addresses this.

Manor Houses or multi-dwelling houses (terraces)

For development involving manor houses or multi-dwelling houses (terraces) to which State Environmental Planning Policy (Housing) 2021, Chapter 2, Part 2, Division 1 applies, a statement, in the form approved by the Planning Secretary, by a qualified designer or a person accredited as a building designer by the Building Designers Association of Australia must be submitted that:

- verifies that the designer or person designed, or directed the design of, the development,
- addresses how the design is consistent with the relevant design criteria set out in the Low Rise Housing Diversity Design Guide.

On-site Wastewater Management System/Septic (for unsewered lands only)

An On-site Wastewater Management Report prepared by a suitably qualified professional is required for proposed installation or alteration of an Onsite Wastewater Management System, or when the load on an existing wastewater management system is to be altered, and is to include but not limited to:

- Details of the proposed wastewater treatment and effluent disposal system, including location of the effluent management area. The Report must not offer options.
- Accreditation of the wastewater system by NSW Health.
- Appropriateness of the proposed system considering frequency of use, available power, slope, soils, wastewater load and other relevant site constraints.
- Consideration of the physical practicality of a gravity-fed system and whether a pump well is required.
- Demonstration of compliance with:
  - » Clauses of the relevant Local Environmental Plan;
  - » 'Environment & Health Protection Guidelines: On-site Sewage Management for Single Households' ('Silver Book', Department of Local Government, 1998); and
  - » Relevant policies and standards, including 'AS/NZS 1547:2012 On-site Domestic Wastewater Management' and the Sydney Catchment Authority's 'Developments in Sydney's Drinking Water Catchment – Water Quality Information Requirements'.
- Soil profiles of the proposed effluent management area(s) to a depth of least one metre (where possible), consistent with AS/NZS 1547:2012, including:
  - » Soil texture and structure with depth using standard soil descriptions;
  - » Dispersibility and other relevant chemical or physical characteristics that may impact on sustainable effluent disposal;
  - » Electrical conductivity/salinity;
  - » Sodicity;
  - » Monthly rainfall and evaporation data, and implications for the nature and size of the effluent management area (where relevant, the impact of severe and prolonged frost is to be considered); and
  - » Where effluent irrigation is proposed, weighted phosphorus sorption values.
- An action plan in the event of a breakdown in, or other interference with, operation of the wastewater system.
- If proposing above ground irrigation in an environmentally sensitive area, a report from a suitably qualified arborist demonstrating a neutral or beneficial effect on vegetation.

The Report is to be supplemented by a site plan (scale 1:200), demonstrating:

- All existing and proposed structures, including stormwater and wastewater management structures, and effluent management areas;
- Slope and general landform, including rock outcrops and geology;
- Vegetation and shading/exposure;
- Rivers, watercourses, drainage depressions and dams, roadside and other open drains;
- Any poor drainage, wet seepage areas, springs, and areas of run on;
- Exposed soil/erosion potential/fill;
- River flats, floodplains and/or flood planning level;
- Any groundwater bores located within 100 m of the effluent management area and their use; and
- Buffer distances.

Overland Flows Study

WLEP 2011 and MLEP 2013

An Overland Flow Study must be submitted for all applications on properties affected by overland flow.

To determine if the subject property is burdened by overland flows surcharging from a Council drainage stormwater system or if it is located in a sag, a Civil Engineer who is currently registered on the National Professional Engineers Register (NPER), should be engaged to investigate and verify whether the subject property is affected by overland flows during a 1 in 100 ARI event.

The Overland Flow Study is to include, but not be limited to the following information:

- hydrological data,
- hydraulics data,
- catchment plan showing sub-catchments (where applicable),
- computer model (applicant is liaise with Council's Development Engineering Team with regards to type of computer modelling required, i.e. 1 Dimensional or 2 Dimensional,
- top water surface level at the receiving water on the drainage layout plan (applicant is to verify/confirm the above level with Council's Development Engineering Team prior to undertaking the above study),
- cross sections detailing the 1 in 100 year ARI water surface levels traversing the site,
- extent of water surface levels to extend upstream and downstream of the subject property,
- above details are to be provided for both existing and post-developed conditions,
- engineers certification that the development will not exacerbate overland flow regime for subject property and surrounding properties.

Sepp 65 Report - Apartment Design Guideline Verification

If the development application relates to a residential flat building or other development such as seniors housing or shop top housing to which SEPP No 65 – Design Quality of Residential Apartment Development applies, the following information must be submitted:

- an explanation and design verification statement from a registered architect in terms of the design quality principles set out in Schedule 1 of the SEPP No 65 – Design Quality of Residential Apartment Development,
- an assessment of the proposal against all relevant provisions of the Apartment Design Guide.

Social Impact Statement

MLEP 2013

Clause 6.21 of the Manly LEP 2013 requires that development applications for licenced premises must consider the impact of noise nuisance likely to be generated by the development on residential accommodation in the vicinity of the proposed development.

All applications for Late Night Venues (see Dictionary in the Manly DCP 2013) and any licensed premises must be accompanied by a social impact assessment demonstrating that the development will ensure the safety and security of the Manly Town Centre and its environs, and the impact of noise nuisance to residential accommodation in the vicinity of the proposed development.

Council may also request an assessment of social impact to accompany other applications where there are likely social impacts as a consequence of the development including any licenced premises.

Solid Fuel Heaters ***(note: these requirements do not apply to gas only heaters)***

The following information is required for development including a solid fuel heater (e.g. wood burning):

- Details from an appropriately qualified person that the proposed heater meets the emission control requirements of AS 4013.2014.
- Specifications from the installer of the appliance indicating compliance with AS/NZS 2918:2001 and the Building Code of Australia.
- Plans demonstrating that the flue pipe will extend not less than 4.6m above the top of the floor protector.
- Plans demonstrating either:
    a. If the flue is 3m or less in horizontal distance from the highest point of the roof, is the top of the flue at least 600mm above highest point of the roof, or
    b. If the flue is over 3m metres in horizontal distance from the highest point of the roof, is the height of the flue at least 1000mm above the roof penetration.
- Ensure the solid fuel heater is shown on the site, floor and elevation plans, drawn to scale, and clearly demonstrating the location of the proposed heater and the proposed flue in relation to the roof line of the dwelling and the closest neighbouring dwelling/building.

Before designing a development that includes a solid fuel heater, consider the following:

- Does the topography of the site or likely weather patterns or configuration of nearby dwelling/s indicate a potential to cause a smoke nuisance?
- Are there any significant trees or other environmental or structural factors in the immediate vicinity that may cause a smoke down draught?

If the answer to the two above questions is YES, consideration should be given to not installing a solid fuel heater, or relocating the heater to a more appropriate location in order to minimise nuisance.

Statement of Heritage Impact

A Statement of Heritage Impact, prepared in accordance with Heritage Council Guidelines, must be submitted for any development application on land:

- on which a heritage item is located,
- that is within a heritage conservation area.

A Statement of Heritage Impact, prepared in accordance with Heritage Council Guidelines, may be required for any development application on land:

- that is in the vicinity of a heritage item or conservation area

The Statement of Heritage Impact, prepared in accordance with the Heritage Council Guidelines, must include:

- an assessment of the heritage significance of the item,
- a discussion of the impacts of the proposed works on the significance of the item, and
- details of the mitigation measures.

In particular, a Statement of Heritage Impact is to demonstrate that all possible means of mitigating any negative impact on the item have been addressed and that the proposed works will not significantly alter the heritage significance of an item or the character of the locality;

- Council may require further documentation that provides guidelines for the on-going management and conservation of heritage items and conservation areas.

Temporary structures

All proposals for a temporary structure (whether or not associated with a temporary use) must submit the following:

- Documentation that specifies the live and dead loads the temporary structure is designed to meet,
- A list of any proposed fire safety measures to be provided in connection with the use of the temporary structure,
- In the case of a temporary structure proposed to be used as an entertainment venue—a statement as to how the performance requirements of Part B1 and NSW Part H102 of Volume One of the Building Code of Australia are to be complied with (if a performance solution, to meet the performance requirements, is to be used),
- Documentation describing any accredited building product or system sought to be relied on for the purposes of section 4.15(4) of the Act,
- Copies of any compliance certificates to be relied on.

Traffic and Parking Report

A Traffic and Parking Report, prepared by a suitably qualified traffic consultant, is required for all applications that generate significant additional traffic and/or parking requirements, or seek to reduce existing parking provisions, excluding applications associated with individual dwellings.

The report must address all traffic and parking related issues including potential conflicts with vehicles, pedestrians and cyclists (all road users) and must demonstrate compliance with relevant RMS Guide to Traffic Generating Developments and Australian Standards.

Water Management Report

For development in the Warriewood Valley Land Release Area, a Water Management Report is to be prepared in accordance with the Warriewood Valley Urban Land Release Water Management Specifications (See Clause C6.1 of P21 DCP); or in the case of newly created individual allotments see Clause D16.4 of P21 DCP for additional water management requirements.

The Water Management Report must address the overall concept of water quality management, flood protection and water cycle management in an integrated sense and is to provide estimates for capital, operational and maintenance cost of the proposed water cycle management measures. Both typical annual maintenance costs and corrective maintenance or renewal/adaption costs should be included.

Water Sensitive Urban Design (WSUD) Strategy

Water Management for Development Policy – Council has a Water Management for Development Policy which includes water management technical specifications for stormwater management including the application of Water Sensitive Urban Design (WSUD).

The Water Management for Development Policy applies to all development in the Northern Beaches LGA subject to Part 4 and Part 5 of the Environmental Planning & Assessment Act 1979 including development applications, exempt and complying development; except development within the Warriewood Valley Release Area, which is required to comply with Pittwater 21 Development Control Plan Section C6.

This policy supports Councils commitment to protecting and enhancing the aquatic and terrestrial natural environment while ensuring protection of public and property across the Northern Beaches. The application of these principles, and corresponding planning controls, will deliver effective integrated management of stormwater, rainwater, groundwater and wastewater.

The development applicant must consider what planning controls apply to the development based on Table 1 and Table 2 of the Water Management for Development Policy. A Stormwater Management Plan or Water Sensitive Urban Design (WSUD) Strategy may be required depending on the planning controls. The Plan or Strategy should detail the methods for controlling and managing stormwater quality and increased stormwater flows and provides stormwater layout plans and measures, including cross sections and detail where appropriate, to ensure the development does not adversely impact the downstream environment.

Water Table Report

Any development that impacts on the water table / groundwater flows is to be supported by a geotechnical and hydrological report in accordance with the guidelines contained in the Sydney Coastal Council's Group 'Groundwater Management Handbook'.

Note: For Controlled Activities / Integrated Developments, applicants are also required to address the requirements of the DPI Water.

Water Management Plan / Waterway Impact Statement

PLEP 2014

For all developments potentially impacting on Waterfront Land (as defined in the Water Management Act 2000 but does not apply to Warriewood Valley Land Release Area) a Water Management Plan must be prepared to demonstrate compliance with clause B5.13 of the Pittwater 21 DCP.

The Water Management Plan is to show the location, description, design details (including cross sections and long-sections of drainage lines and watercourses), dimensions and discharge details for all proposed stormwater system work elements. The location and dimensions of all existing and proposed drainage easements, and easements to be extinguished is also to be shown. A Water Management Plan with supporting documentation is to be submitted demonstrating the feasibility of any proposed watercourse works within the site.

WLEP 2011

For all developments carried out on Waterways and Riparian Lands as identified in Clause E8 of the Warringah DCP 2011 and Council's Protection of Waterway and Riparian Lands Policy, a Waterway Impact Statement must be prepared in accordance with Council's Guidelines for Preparing a Waterways Impact Statement.

A Waterway Impact Statement is a report which is to be prepared to enable Council to conduct an adequate environmental assessment of development works so as to protect, maintain and enhance waterways and riparian lands.

MLEP 2013

For all developments within 40m and potentially impacting on a "Watercourse" or "Wetland" as identified on the Watercourse or Wetland Map, a report similar to a Waterways Impact Statement must be provided to demonstrate compliance with Clause 6.6 and 6.7 of the Manly Local Environmental Plan 2013 and 5.4.4 of the Manly DCP 2013.

The report is to demonstrate how the development is to protect and /or rehabilitate fully vegetated local riparian vegetation (comprising local native trees, shrubs and groundcover species) and watercourses.

Note 1: *For Controlled Activities/Integrated Developments applicants are required to address the requirements of the DPI Water and Fisheries.*

Note 2: *A Water Management Plan or Waterway Impact Statement may be required for unmapped waterways.*